

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Broeksmit	Team: Team # 2	CCRB Case #: 201305853	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/30/2013 3:39 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/30/2014	Precinct: 62		
Date/Time CV Reported Mon, 07/01/2013 2:24 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/01/2013 2:24 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eduard Nogol	17002	931851	062 PCT
2. POM John Wygand	16282	939719	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eduard Nogol	Abuse: PO Eduard Nogol entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . POM John Wygand	Abuse: PO John Wygand entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . POM Eduard Nogol	Abuse: PO Eduard Nogol searched § 87(2)(b) in Brooklyn.	C . Substantiated

Case Summary

§ 87(2)(b) called the CCRB to file this complaint on July 1, 2013 (encl. a4-a5). On June 30, 2013, § 87(2)(b)'s neighbor, § 87(2)(b) called 911 to file a complaint against § 87(2)(b). PO Eduard Nogol and PO John Wygand responded to § 87(2)(b)'s residence at § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A– Abuse of Authority: PO Eduard Nogol entered § 87(2)(b) in Brooklyn.**
- **Allegation B – Abuse of Authority: PO John Wygand entered § 87(2)(b) in Brooklyn.**
- **Allegation C – Abuse of Authority: PO Eduard Nogol searched § 87(2)(b) in Brooklyn.**

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, and C** be closed as **substantiated**.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b), white woman with blonde hair and hazel eyes, was § 87(2)(b) old at the time of the incident.

CCRB Statement

§ 87(2)(b) provided a phone statement on July 3, 2013, was interviewed at the CCRB on July 17, 2013 (encl. b1-b12). She provided two additional phone statements on July 25, 2013, and November 25, 2013 (encl. b13-b14). She is a Russian speaker with very limited English. Inv. Stan Sazonov interpreted § 87(2)(b)'s in-person interview and her November 25, 2013, phone statement. The remaining calls were conducted via language-line interpreters. § 87(2)(g)

On June 30, 2013, at approximately 3 a.m., § 87(2)(b) was at her residence at § 87(2)(b) in Brooklyn when she heard her neighbors being loud. She exited her apartment, took photographs of them walking up the stairs, and told them to be quiet or she would call the police. Her neighbors cursed at her and said they would call the police. At 3:06 a.m., § 87(2)(b) placed a call to 311 to complain about her neighbors. She provided a photograph of her iPhone screen which verified the time and length of her call. While she was on the phone with a 311 operator, two officers, identified via investigation as PO Eduard Nogol and PO John Wygand, knocked on her door.

§ 87(2)(b) still on the phone, stepped out into the hallway and closed the door partway behind her. One officer stood between her and her apartment door. The other officer stood in front of her. § 87(2)(b) could not say which officer stood where. PO Eduard Nogol told § 87(2)(b) to get off the phone. § 87(2)(b) asked what the problem was. PO Nogol said that, because § 87(2)(b) spoke to 311, he would not tell her. § 87(2)(b) explained that her neighbors were noisy. PO Nogol told her to shut up. § 87(2)(b) told the 311 operator that officers were there. The operator asked if she wanted to file a complaint against them but she said no. PO Nogol took her phone and ended the call.

(During her November 25, 2013, phone statement, § 87(2)(b) stated that an officer, she was not sure which, entered her apartment before she did, and that the other officer followed her inside. Neither of them asked permission to enter. § 87(2)(b) did not do or say anything to invite them in but also did not protest their entry.

§ 87(2)(b) and the officers went into her bedroom.) PO Nogol took two of § 87(2)(b)'s purses and emptied their contents on to the bed. PO Nogol asked § 87(2)(b) for her ID. Neither officer had asked for her ID prior to PO Nogol emptying her bags. § 87(2)(b) told the officers that she did not know where her ID was but added that her passport was in her suitcase. She pointed to the suitcase and PO Wygand picked it up and asked if she was referring to that suitcase. PO Wygand did not say anything else to § 87(2)(b) throughout the incident. PO Nogol told PO Wygand that § 87(2)(b) was playing around with them and to put her in handcuffs. § 87(2)(b) told the officers she suffered from § 87(2)(b). PO Nogol placed the handcuffs around her knuckles, grabbed her right bicep, and escorted § 87(2)(b) out of the building.

At the stationhouse, § 87(2)(b) was placed in a holding cell and asked PO3, a 5'5" tall, slim Hispanic woman with dark hair, for medicine or to be brought to a place where she could take medicine. During her November 25, 2013, phone statement, § 87(2)(b) repeated, in English, the statements she made to PO3: "I am a very sick woman. I am on disability. I cannot be without my medicine. I do not know why I am here. Police no talk to me [sic]." According to her November 25, 2013, phone statement, § 87(2)(b) did not say anything else to PO3. PO Nogol told PO3 not to listen to § 87(2)(b) because she was on drugs.

Attempts to Contact Civilians

§ 87(2)(b) lived on the floor above § 87(2)(b) and remained there until § 87(2)(b) was escorted out of the building. Therefore, no attempts were made to contact her.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Statements:

Subject Officer: PO EDUARD NOGOL

- PO Nogol was a § 87(2)(b), white man with black hair and brown eyes. He was § 87(2)(b) years old at the time of the incident.
- PO Nogol was assigned to patrol sectors G and H with PO John Wygand from 11:15 p.m. until 7:50 a.m. in marked RMP (#2336) on June 30, 2013. He was in uniform.

Memo Book

At 2:55 a.m., PO Nogol responded to § 87(2)(b) § 87(2)(b) (encl. c3-c6). At 3:05 a.m., he arrived at the location. At 3:15 a.m., PO Nogol talked to the complainant, § 87(2)(b) in regards. At 3:25 a.m., PO Nogol located § 87(2)(b) in apartment § 87(2)(b). PO Nogol's next entry was at 4:01 a.m. but was crossed out. It stated that a female was arrested at the location. Beneath that entry, PO Nogol wrote that at 3:50 a.m. a show up was done on the second floor of the location and § 87(2)(b) was positively identified. At 4:01 a.m., § 87(2)(b) was arrested and transferred to the precinct.

Complaint Report and Arrest Report

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Testimony

PO Nogol was interviewed at the CCRB on October 9, 2013 (encl. c12-c14).

At 2:55 a.m. on June 30, 2013, PO Nogol and PO Wygand responded to a 911 call at § 87(2)(b) in Brooklyn. § 87(2)(b) explained to PO Nogol and PO Wygand that her downstairs neighbor § 87(2)(b) had been harassing her for two weeks by taking photographs of her, calling 911 on her, calling 311 to file noise complaints against her, and by accusing § 87(2)(b) of being a prostitute. § 87(2)(b) told PO Nogol and PO Wygand that earlier that night § 87(2)(b) approached § 87(2)(b) and tried to take a photograph.

PO Nogol and PO Wygand went to Apartment § 87(2)(b) and knocked for three to five minutes. There was no answer but PO Nogol heard a woman talking on the phone inside. He thought she was on the phone with 911, told her that the police were already there, and asked her to come outside to speak with them. When § 87(2)(b) opened the door, she was speaking to 311 on her mobile phone and was asking for police assistance. PO Nogol repeated that the police were already there but § 87(2)(b) continued to request officers. PO Nogol was the contact officer and PO Wygand did not talk to § 87(2)(b). § 87(2)(b) remained on the phone for 10 minutes. Her voice was escalating to the point where PO Nogol could hear § 87(2)(b)'s neighbors opening and closing their doors. Upstairs neighbors called down for § 87(2)(b) to be quiet.

PO Nogol tried to ask § 87(2)(b) to provide her side of the story but she did not. Therefore, PO Nogol acted based on § 87(2)(b) statement, which established probable cause that § 87(2)(b) had committed harassment or stalking. PO Nogol asked § 87(2)(b) for her ID but she ignored his request. PO Nogol knew § 87(2)(b) heard his request because she was looking at him while “mouthing and talking” on the phone. Later in the interview, PO Nogol said § 87(2)(b) did not acknowledge his request for her ID until they were in her apartment. PO Nogol told § 87(2)(b) that if she would provide ID, she would merely be issued a summons. § 87(2)(b) refused to ID herself again and PO Nogol asked where it was. § 87(2)(b) said it was inside and she and the officers entered the apartment.

Initially, PO Nogol said he and PO Wygand entered to look for § 87(2)(b)'s ID to issue her a summons for § 87(2)(b). Later in the interview, PO Nogol stated he went into § 87(2)(b)'s apartment because she was under arrest and that he did not ask her permission to enter because he had already established a violation arrest for § 87(2)(b). At one point in the interview, PO Nogol stated § 87(2)(b) was considered under arrest when she failed to produce her ID inside the apartment. At another point in the interview, PO Nogol stated § 87(2)(b) was considered to be under arrest since before the entry.

Once inside, § 87(2)(b) sat down in an interior hallway. She was still on her phone. PO Nogol took her phone, hung up the call and put it down on a bureau because he feared for his safety that the phone could be used as a weapon. PO Nogol asked for her ID again. § 87(2)(b) picked up a handbag, said her ID was inside of it, and went through it. This was the first time § 87(2)(b) acknowledged PO Nogol's request. There was no ID in the handbag. Five minutes later, § 87(2)(b) said her ID was in a bag in her bedroom. She and the officers went to her bedroom. § 87(2)(b) pointed out two handbags that were in her cluttered room and said her ID was in them. PO Nogol retrieved the handbags from somewhere near § 87(2)(b)'s bed and emptied their contents onto § 87(2)(b)'s bed. Her ID was not in either one. He stated the bags were big and full of documents.

Upon § 87(2)(b)'s failure to produce her ID, PO Nogol told her she was under arrest. She stood up, crossed her arms in front of her, flailed her body, and did not allow the officers to put handcuffs on her. Both officers put handcuffs on § 87(2)(b). § 87(2)(b) went limp and tried to sit on the ground. PO Nogol and PO Wygand stood § 87(2)(b) up and escorted her out of her apartment. No additional force was used to arrest § 87(2)(b). She did not complain of being in pain or being sick.

While officers were escorting § 87(2)(b) out of the building, § 87(2)(b) looked down the stairwell from the third floor and identified § 87(2)(b) as the subject of her complaint.

At the 62nd Precinct stationhouse, § 87(2)(b) asked PO Nogol to speak with a Russian interpreter or a Russian speaking officer despite speaking fluent English throughout the incident. § 87(2)(b) did not complain of being sick or having pre-existing medical conditions. She did not ask for medicine or request medical attention. PO Nogol did not tell another officer not to listen to § 87(2)(b) because she was on drugs. There were other prisoners in the holding cells that night and other officers were tending to them but PO Nogol did not note any officer who was interacting with § 87(2)(b).

Subject Officer: PO JOHN WYGAND

- *PO John Wygand was a § 87(2)(b), white man with blonde hair and blue eyes. He was § 87(2)(b) old at the time of the incident.*
- *On June 29, 2013, PO Wygand worked from 11:15 p.m. until 7:50 a.m. the next day. He was patrolling sectors G and H with PO Nogol. Both were in uniform.*

Memo Book

At 2:55 a.m., a 39 came over the radio at § 87(2)(b) (encl. c16-c18). The fly sheet notes information for complainant § 87(2)(b) from Apt. § 87(2)(b). At 4:01 a.m., § 87(2)(b) was arrested. At 4:10 a.m., PO Wygand returned to the stationhouse and did administrative work for by PO Nogol's arrest.

CCRB Testimony

PO Nogol was interviewed at the CCRB on November 4, 2013 (encl. c19-c21). § 87(2)(g)

On June 30, 2013, PO Wygand and PO Nogol responded § 87(2)(b) in Brooklyn.

§ 87(2)(b) opened the door and walked into the hallway while talking on her mobile phone. Neither officer positioned himself between § 87(2)(b) and her apartment door. They tried to ask

§ 87(2)(b) about the complaint filed against her. § 87(2)(b) was speaking loudly on the phone, “defiantly” refused to comply with the officers’ commands, and ignored their requests to speak with her. Both officers ordered § 87(2)(b) to hang up the phone but PO Wygand did not recall how many times. At first, PO Wygand stated that other tenants on that floor, the floor above, and the floor below came out of their apartments and told § 87(2)(b) to shut up. He later clarified that he did not see anyone come out of their apartments but heard their doors opening and closing. § 87(2)(b) stayed on the phone for five minutes. PO Wygand did not recall whether § 87(2)(b) was speaking Russian. PO Nogol took § 87(2)(b)’s cellphone after she hung but PO Wygand did not know why.

Both officers asked for § 87(2)(b)’s ID several times but she said she did not have it with her and that it was inside. § 87(2)(b) could communicate well in English but had an accent. The officers told § 87(2)(b) they needed her ID to know who to issue the summons to. The summons would have been for disorderly conduct because she was speaking loudly in the hallway, creating a disturbance. The officers told her they needed to go inside. § 87(2)(b) entered her apartment and the officers followed her in. § 87(2)(b) let the officers in by opening the door but he did not recall whether he or PO Nogol asked permission to enter or whether she verbally consented.

§ 87(2)(b) was looking through a purse in her bedroom but neither PO Nogol nor PO Wygand ever entered that purse. PO Wygand did not see PO Nogol empty that purse. PO Wygand did not recall whether PO Nogol looked for § 87(2)(b)’s ID. PO Wygand did not see PO Nogol look for anything behind § 87(2)(b)’s bed. § 87(2)(b) was placed under arrest in her bedroom after failing to produce her ID. PO Wygand did not recall who handcuffed her.

At some point while in her apartment, § 87(2)(b) said she was a sick woman but she never mentioned pre-existing conditions. § 87(2)(b) never complained of being sick in PO Wygand’s presence at the stationhouse. He did not see a female officer interact with her there.

NYPD Documents

Command Log

§ 87(2)(b) was stamped into the command log at 4:10 a.m. and was transferred to central booking at 4:05 p.m. the next day (encl. D2). Her physical and mental condition was listed as apparently normal and it was not noted whether she requested medical attention.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- A request was filed for any Notice of Claim with the City of New York as filed by § 87(2)(b) with regard to the incident on October 15, 2013, and again on July 9, 2014, nearly ten months after the filing deadline. It will be included in the case file upon its receipt.

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- § 87(2)(b) has filed CCRB complaint § 87(2)(b).

(encl. a3).

Subject Officers CCRB History

- PO Nogol has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (encl. a1).
- PO Wygand has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. a2).

Conclusion

Allegations Not Plead

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Identification of Subject Officers

PO Nogol and PO Wygand acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A– Abuse of Authority: PO Eduard Nogol entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: PO John Wygand entered § 87(2)(b) in Brooklyn

It is undisputed that § 87(2)(b) interacted with § 87(2)(b) on the date of the incident and that § 87(2)(b) filed a complaint against her with PO Nogol and PO Wygand in regards. It is also undisputed that § 87(2)(b) accused § 87(2)(b) of harassment. It is undisputed that PO Nogol and PO Wygand went to and eventually entered § 87(2)(b)'s apartment and arrested her therein for § 87(2)(a) 160.50.

§ 87(2)(b) stated that she was on the phone with 311, filling a noise complaint against § 87(2)(b) when PO Nogol and PO Wygand knocked on her door. She stepped out into the hallway and one of the officers positioned himself between her and her door and the other officer was in front of her. § 87(2)(b) tried to tell the officers that § 87(2)(b) was being noisy but PO Nogol told her to shut up, took her phone, and ended the call. § 87(2)(b) stated that one of the officers entered her apartment without asking permission and that she followed him in. § 87(2)(b) did not know which officer entered first but claimed that the other officer entered after she did. § 87(2)(b) did not do or say anything to invite the officers in but did protest their entry. She stated that neither officer asked for her ID prior to entering her apartment.

PO Nogol stated that § 87(2)(b) speaking on the phone very loudly for around 10 minutes while he and PO Wygand tried to speak with her in the hallway. PO Nogol stated that he asked § 87(2)(b) to explain her side of the story while she was on the phone but that she would not. PO Nogol stated that, without § 87(2)(b)'s side of the story, he acted based on § 87(2)(b)'s complaint which established probable cause that § 87(2)(b) had harassed § 87(2)(b). PO Nogol stated that he asked § 87(2)(b) for her ID while she was on the phone but that she ignored him. PO Nogol stated that he told § 87(2)(b) that she would be merely summonsed if she provided her ID but she refused. PO Nogol stated that he asked § 87(2)(b) where her ID was and she stated it was inside her apartment. PO Nogol stated that he, PO Wygand, and § 87(2)(b)

§ 87(2)(b) entered her apartment but did not say in what order.

§ 87(2)(g) Initially, PO Nogol stated that he and PO Wygand entered § 87(2)(b)'s apartment to look for her ID to issue her a summons and that she was considered to be under arrest when she failed to produce her ID. Later in the interview, PO Nogol stated that he went into § 87(2)(b)'s apartment because she was considered to be under arrest from the outset of the incident and that he therefore did not need her permission to enter. Initially, PO Nogol claimed that he asked § 87(2)(b) for her ID multiple times in the hallway but that she either ignored him or refused. Later, PO Nogol stated that § 87(2)(b) only acknowledged her request after the officers were inside her apartment and only once PO Nogol had ended § 87(2)(b)'s call with 311.

PO Wygand added that neither he nor PO Nogol positioned himself between § 87(2)(b) and the door to her apartment. PO Wygand agreed that § 87(2)(b) ignored the officers' attempts to speak with her and was speaking loudly on the phone instead. PO Wygand agreed that he and PO Nogol asked § 87(2)(b) for her ID several times and that she stated she did not have it with her and that it was inside. PO Wygand stated that he told § 87(2)(b) that he and PO Nogol needed her ID to know who to issue the summons to. PO Wygand stated that § 87(2)(b) said her ID was inside and he and PO Nogol told § 87(2)(b) they needed to go inside. PO Wygand stated that § 87(2)(b) let the officers in by opening her door and walking in but he did not recall whether he or PO Nogol asked permission to enter or whether they were verbally invited in.

An officer may make a warrantless entry to effect an arrest only if he has an individual's consent to do so or if there are exigent circumstances such as a threat to an officer's safety or the imminent threat of the destruction of evidence. People v. Jimenez, 187 A.D.2d 332 (encl. v-ix). Consent must be voluntary and can be established via an individual's conduct and/or words. People v. Brown, 651 N.Y.S.2d 981 (1996 – 1st Dept.). (encl. x-xiv). The voluntariness of consent is evaluated by the surrounding circumstances including whether the defendant knows s/he can refuse consent. People v. Keesler, 842 N.Y.S.2d 166, 167 (2007 – 2d Dept.). (encl. xv-xvi).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A** and **B** be closed as **substantiated**.

Allegation C – Abuse of Authority: PO Eduard Nogol searched § 87(2)(b) in Brooklyn.

It is undisputed that PO Nogol emptied the contents of two of § 87(2)(b)'s purses onto her bed in an attempt to retrieve her ID. § 87(2)(b) claimed that neither officer had asked for her ID before PO Nogol searched for it.

PO Nogol stated that § 87(2)(b) had looked for her ID in a different bag in her foyer but could not find it. PO Nogol stated that § 87(2)(b) said her ID was in a bag in her room, went there, and pointed out two bags. PO Nogol stated that the bags were big and full of documents, that he retrieved them from near § 87(2)(b)'s bed, and that he emptied them onto her bed. § 87(2)(b)'s ID was not in either bag and she was arrested as a result.

A warrantless search of a specific area within a residence is justified when the search is based on probable cause that the area contains evidence of a crime and exigent circumstances make the procurement of a warrant impractical. People v. Green, 930 N.Y.S.2d 176 (2011 – Sup. Ct. Bx Cty). (encl. i-iv).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Team: ____2____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date